

The Indian Port Health Rules, 1955

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Union of India - Act

The Indian Port Health Rules, 1955

UNION OF INDIA

India

The Indian Port Health Rules, 1955

Rule THE-INDIAN-PORT-HEALTH-RULES-1955 of 1955

Published on 27 February 1956

Commenced on 27 February 1956

[This is the version of this document from 27 February 1956.]

[Note: The original publication document is not available and this content could not be verified.]

The Indian Port Health Rules, 1955

Published vide Notification Gazette of India, 1956, Part 2, Section 3, page 302.

2013.

S.R.O. 587, dated 27th February, 1956. - In exercise of the powers conferred by Cl. (p) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (

15 of 1908

) and in supersession of the "Indian Ports Health Rules (1938)" the Central Government hereby makes the following rules, the same having been previously published as required by Section 6 (2) of the said Act, namely :

Part I ? Introductory

1.

These Rules maybe called the Indian Port Health Rules, 1955.

2.

In these Rules unless there is anything repugnant in the subject or context.-

(1)

"arrival" means arrival at a port;

(2)

"baggage" means the personal effects of a traveller or of a member of the crew;

(3)

"crew" means the personnel of a ship employed for duties on board;

(4)

"day" means an interval of twenty-four hours;

(5)

"Health Officer" means any person appointed

(a)

in the case of major ports, by the Central Government, and

(b)

in the case of other ports, by the State Government concerned to whom the functions of the Central Government under sub-section (1) of Sec. 17 of the Indian Ports Act, 1908 (

15 of 1908

), to appoint a Health Officer have been entrusted,

either by name or by virtue of his office, to be the Health Officer of a port, and includes an Additional, Deputy, or Assistant Health Officer, and any officer appointed by the Central Government or the State Government, concerned, as the case maybe, either by name or by virtue of his office, to perform any of the duties of a Health Officer of a port.

(6)

"infected area" in relation to a quarantinable or an infectious disease means any area or port outside India, declared by the Central Government by notification in the Official Gazette to be infected with such a disease;

(7)

"infected person" means a person who is suffering from a quarantinable or an infectious disease, or who is believed to be infected with such a disease;

(8)

"infectious disease" means disease, other than quarantinable diseases, declared by the Central Government by notification in the Official Gazette to be an infectious disease;

(9)

"international voyage" means

(a)

in the case of a ship, a voyage between ports in the territories of more than one State, or a voyage between ports in the territory or territories of the same State if the ship has relations with the territory of any other State on its voyage but only as regards those relations.

(b)

in the case of a person, a voyage involving entry into the territory of a State other than the territory of the State in which that person commences his voyage.

(10)

"isolation", when applied to a person or group of persons, means the separation of that person or group of persons from other persons, except the health staff on duty, in such a manner as to prevent the spread of infection;

(10-A) "mainland" means the territory of India excluding the Andaman and Nicobar Islands;

(11)

"medical examination" includes visit to and inspection of a ship, and the preliminary examination of persons on board, but does not include the periodical inspection of a ship to ascertain the need for deratting;

(12)

"port" means a seaport or an inland navigation port which is normally frequented by ship;

(13)

"period of incubation" means

(a)

in respect of a quarantinable disease mentioned below, the period specified against it.

Plague6 days

Cholera5 days

Yellow fever6 days

Smallpox14 days

Typhus14 days

Relapsing fever8 days, and

(b)

in respect of an infectious disease such period as maybe declared by the Central Government by notification in the Official Gazette to be the period of incubation of that disease;

(14)

"quarantinable diseases" means plague, cholera, yellow fever, smallpox, typhus and relapsing fever;

(15)

"relapsing fever" means louse-borne relapsing fever;

(16)

"ship" means a sea-going or an inland navigation vessel making an international voyage; and also includes a vessel plying between any port on the mainland and any port on the Andaman and Nicobar Islands;

(17)

"ship's surgeon" means a properly qualified and registered medical practitioner with experience of maritime health conditions employed for medical service on a ship or, if there are two or more such medical practitioners so employed, the senior of them;

(18)

"suspect" means a person who is considered by the Health Officer as having been exposed to infection by a quarantinable or an infectious disease and is considered capable of spreading that disease;

(19)

"typhus" means louse-borne typhus;

(20)

"valid certificate", when applied to vaccination, means a certificate which

(i)

conforms to the requirements and the model laid down in appendices 2,3 and 4 to these rules;

(ii)

is issued only to individuals and in such form that it cannot, in any circumstances, be used collectively.

(iii)

is issued in the case of children separately and is not incorporated in the mother's certificate.

(iv)

is completed in English or in French;

(v)

is signed in the case of an international certificate by the parent or guardian of a child who is unable to sign or which bears, in the case of an illiterate person the mark of such illiterate person duly attested by another person to whom such illiterate person is personally known.

(vi)

is signed, in the case of an international certificate issued in India, in his own hand by a qualified medical practitioner whose name is enrolled in the Indian Medical Register maintained under Sec. 21 of the Indian Medical Council Act, 1956 (

102 of 1956

). In the case of certificates of vaccination against cholera and smallpox issued in India, the approved stamp to be affixed thereon shall be such as has been approved by the Central Government and the stamp shall be affixed on the certificates by only those persons who are authorised, either by designation or by name, for this purpose by the Central Government. In the case of certificates of vaccination against yellow fever issued in India, the vaccinating centres shall be approved by the Central Government.

(21)

"cattle" means a horse, camel, sheep, cow, bull, buffalo-bull, buffalo-cow and all other ruminating animals and also swine;

(22)

"vessel" includes anything made for the conveyance mainly by water of human beings or of property.

Part II ? Ships Arriving

General Provisions

3.

The master of every ship arriving at any port shall show, until the ship has received pratique under these Rules, whichever of the following signals is appropriate.

(a)

by day, during the whole of the time between sunrise and sunset, when the ship is within three miles of the coast

(i)

the Flag Signal Q: meaning-"my ship is healthy and I request free pratique.

(ii)

the Two Flag Signal QQ: meaning-"my ship is suspected" (vide rules 20, 24, 29, 41 and 45), or

(iii)

the Two Flag Signal QL : meaning -"my ship is infected" (vide rules 20,24,29,35,41 and 45), the signal being shown also when a person suffering from typhus or relapsing fever is on board.

(b)

by night, during the whole of the time between sunset and sunrise but only when the ship is within three miles of the coast, a signal which shall be shown at the peak or other conspicuous place where it can best be seen, comprising a red light over a white light the lights being not more than six feet apart, and meaning "have not free pratique":

Provided that the authorities at a port may, with the previous approval of the Central Government, notify alternative signals, not conflicting with the International Code, for use by ships visiting the port frequently.

4.

(1)

The master of any ship fitted with a suitable wireless transmitting apparatus shall, when not more than twelve hours and not less than four hours out from any port to which he is proceeding, send to the Health Officer of the port, either directly or through an agent approved by the Health Officer, a wireless message, embodying all items of information of Pratique Messages in Plain Language set out in the Note below and all such of the items of information set out in the Standard Quarantine Messages of the International Code of Signals as are applicable, and cases of sickness or death occurring subsequent to transmission of such message shall be communicated by wireless in like manner before the arrival of the ship in the port :

Provided that the Port Trust or like authority administering a port may, with the previous approval of the Central Government, notify alternative signals not conflicting with the International Code, for use by ships visiting the port frequently.

Note. - The telegraphic address of the Health Officer of a port is "Quarantine" and the Pratique Messages in Plain Language and Standard Quarantine Messages of the International Code of Signals are reproduced below.

Pratique Messages In Plain Language

1. My Maritime Declaration of Health has negative answers to all health questions.

or

My Maritime Declaration of Health has a positive answer to question (indicated by complements).

2. Called at or not called at any port in Ethiopia, Somalia, Kenya and Tanzania and any port from northern-most point of Senegal to southern most point of Angola in West Coast of Africa within 30 days.

3. Have or have not monkey on board.

4. Have or have not any person on board embarking at Aden or Djibouti.

Standard Quarantine Message

Item I

MEBAV. The following is an International Quarantine Message from ship indicated, of port indicated, which expects to arrive at time indicated, on date indicated.

(Here follow groups to complete above).

Item II

MECED. My port of departure (first port of loading) and my last port of call were as indicated by the immediately following groups.

Item III

MEDIH. No case of quarantinable or infectious disease, or of sickness suspected to be of an infectious nature has occurred on board during the last fifteen days.

MEFOF. Number indicated cases of quarantinable or infectious disease (s) indicated have occurred during the last fifteen days.

Item IV

MEGYX. I have no other case of sickness on board.

MEHUD. I have number indicated other cases of sickness on board.

Item V

MEJAC. No deaths from sickness, infectious or otherwise, have occurred on board during the voyage.

MEKEK. Number indicated deaths from sickness, infectious or otherwise, have occurred on board during the voyage.

Item VI

MELOC. I have a ship's surgeon on board.

MEMYT. I have no ship's surgeon on board.

Item VII

MENIJ. I do not wish to disembark any sick.

MEPUP. I wish to disembark number indicated sick, suffering from disease (s) indicated.

Item VIII

MEQOV. My crew consists of number indicated and I have no passengers on board.

MERAT. My crew consists of number indicated, and I have number indicated passengers.

Item IX

MESEC. I do not propose to disembark any passengers of class indicated.

METIK. I propose to disembark number indicated passengers of class indicated.

(2)

The Health Officer may, if authorised by general or special orders of the Central Government, grant pratique by radio to a ship when on the basis of information received from it prior to its arrival, he is of the opinion that its arrival will not result in the introduction or spread of a quarantinable or an infectious disease.

5.

(1)

The master of a ship, before arrival at a port, shall ascertain the state of health on board, and he shall, on arrival, complete and deliver a Maritime Declaration of Health, which shall be countersigned by the ship's surgeon if one is carried, to the pilot, boarding officer, or other officer duly authorised in this behalf by the harbour master or the Conservator or his Deputy, and the pilot, boarding officer or other officer duly authorised in this behalf, shall promptly communicate the Declaration to the Health Officer :

Provided that, except in the case of ships governed by the special provisions relating to yellow fever and in the case of ships having on board persons suffering from typhus or relapsing fever, it shall be permissible for the pilot, boarding officer or other officer duly authorised as above in this behalf, if acting on general or special instructions of the Health Officer, to allow pratique to "healthy" ships.

(2)

The Master, and ship's surgeon if one is carried shall supply any further information required by the Health Officer as to health conditions on board during the voyage.

(3)

A Maritime Declaration of Health shall conform with the model specified in Appendix 5.

6.

If after a ship has arrived within port limits a case or suspected case of any quarantinable or infectious disease occurs on board, the master shall hoist the signal prescribed in rule 3 for an "infected" ship, shall stop all communication with the shore and shall immediately report the circumstances to the Health Officer.

7.

Every medical practitioner who becomes cognizant that any person on board any vessel in the port is suffering from a quarantinable or an infectious disease shall immediately give notice thereof by telephone and in writing to the Health Officer.

8.

(1)

All infected or suspected ships or ships having on board persons suffering from typhus or relapsing fever shall stop at such place at the port as the appropriate port authority shall, in consultation with the Health Officer, provide in this behalf and shall not enter any dock or come alongside any wharf or have communication with the shore or with any other vessel in the port until authorised to do so by the Health Officer.

(2)

Notwithstanding anything contained in sub-rule (1), the Health Officer may, for navigational reasons, permit such infected or suspected ship or ships to come alongside a specially controlled wharf where strict vigilance is possible to be maintained and enforced to prevent any communication with the shore or with any other vessel in the port until declared safe by him.

9.

So long as a signal showing that the ship is "infected" or "suspected" is displayed by a ship, no pilot or other person in charge of, or navigating any boat other than a boat conveying a pilot, a harbour-master, a mooring crew when navigational reasons necessitate, a Conservator or his Deputy or an official acting in execution of these Rules shall attempt to take such boat alongside the ship except with the permission of the Health Officer and no person other than a pilot, a harbour-master, a mooring crew when navigational reasons necessitate, a Conservator or his Deputy or an official acting in the execution of these Rules shall board or leave any "infected" or "suspected" ship without the written permission of the Health Officer.

10.

(1)

Healthy ships, which, while in port, do not desire to have communication with the shore, shall on arrival hoist the code over O flag by day, and the International Code Signal by night, meaning "I have not free pratique" (as provided for in rule 3).

(2)

A ship shall be regarded as not having communication with the shore if it is making a call of less than twenty-four hours and if while it is in port it has no communication either with the shore or with any other vessel in the port, of such a nature as would, in the opinion of the Health Officer, render possible the conveyance of a quarantinable or an infectious disease from the ship to the shore or to any other vessel in the port or vice versa.

(3)

A ship not having communication with the shore shall be subject to such restrictions as the Health Officer acting under these Rules may impose.

11.

In the case of all infected and suspected ships and ships having on board persons suffering from typhus or relapsing fever the Health Officer shall, and in the case of all other ships the Health Officer may, proceed on board and medically examine the ship, and the master of the ship shall give him every facility for the examination of the passengers, crew, baggage, cargo, provisions, water supply and any part of the ship which the Health Officer may consider it necessary to examine. This examination shall not be undertaken between sunset and sunrise except in such unusual circumstances as, in the opinion of the Health Officer, justify doing so. After every medical examination the Health Officer shall classify the ship as infected, suspected or healthy in accordance with special provisions relating to quarantinable and infectious diseases in this part of the Rules.

12.

(1)

Further sanitary measures which may be applied to the ship shall be determined by the conditions which existed on board during the voyage or which exist at the time of the medical examination, without prejudice, however, to the measures which are permitted by these Rules to be applied to the ship if it arrives from an infected area. The application of the measures in the case of a ship arriving from an infected area shall be limited to the ship, person, or

article, as the case may be, arriving from such an area, provided that the Health Officer for the port of arrival is satisfied that the health authority for the port of departure in the infected area took all practicable measures for checking the spread of the disease.

(2)

Where special problems constituting a grave danger to public health exist, a person on an international voyage may, on arrival, be required to give a destination address in writing.

13.

(1)

Any sanitary measure, other than medical examination, which has been applied to a ship at a previous port, shall not be repeated unless

(a)

after the departure of the ship from the port where the measures were applied an incident of epidemiological significance calling for a further application of any such measure has accrued either in that port or on board the ship; or

(b)

the Health Officer has reason to believe that the individual measure so applied was not substantially effective.

(2)

In applying these sanitary measures the Health Officer shall attach due importance to the presence on board of a ship's surgeon and to the provision on board of suitable apparatus for disinfecting, dis-insecting and derating and shall, in general apply the principles laid down in these Rules with due regard to their necessity and practicability in the particular circumstances of each case.

14.

(1)

All persons suffering or suspected to be suffering from a quarantinable disease may be disembarked from a ship and isolated. Such disembarkation shall be compulsory if it is required by the master of the ship.

(2)

Where any person is required under these Rules to be disembarked and isolated for any period, the Health Officer may remove, or cause to be removed, that person to a hospital or any other place approved by the Health Officer and detain him therein for that period. If such a hospital or place is within Municipal or Corporation limits, the Health Officer shall communicate relevant particulars of the person concerned to the Municipal or Corporation health authorities.

(3)

When a suspected case of any quarantinable disease is disembarked from a ship at any port, the Health Officer of that port shall report by telegraph the confirmation, or otherwise, of the diagnosis to the Health Officer of the ship's next port of call if that port is in India, Burma, Ceylon, Pakistan, Aden or the Straits Settlements.

15.

Apart from the special provisions relating to quarantinable or infectious diseases in Part II of these Rules, the Health Officer may place under surveillance any suspect on an international voyage arriving from an infected area. Such surveillance may be continued until the end of the appropriate period of incubation specified in sub-rule (13) of rule 2.

16.

(1)

A person under surveillance shall not be isolated and shall be permitted to move about freely. The Health Officer may require such a person to report to him, if necessary, at specified intervals during the period of surveillance. The Health Officer may also subject such a person to medical investigation and make any enquiry which are necessary for ascertaining his state of health.

(2)

When a person under surveillance departs for another place in India he shall inform the Health Officer who shall immediately inform the medical officer of health of the place to which the person is proceeding. On arrival the person shall report to that medical officer of health who may apply the measures provided for in sub-rule (1).

17.

Whenever surveillance is required or permitted by these Rules, isolation shall not be substituted for surveillance unless the Health Officer of the port where the suspect arrives or any other health authority to whom he is required to report during the period of surveillance considers the risk of transmission of the infection by the suspect to be exceptionally

serious.

18.

The port or ports equipped for applying the sanitary measures prescribed in these Rules to ships infected with yellow fever or suspected of yellow fever infection shall be specified by the Central Government by notification in the official Gazette. Any such ship calling at a port other than a specified port shall be required to proceed at its own risk to the nearest specified port convenient to the ship.

19.

(1)

Any ship which is unwilling to submit to the measures required by the Health Officer of the port in accordance with these Rules shall be allowed to depart forthwith being permitted to enter into any form of communication with the shore or with any other vessel in the port which would render possible the conveyance of any quarantinable or infectious disease to the shore or to such other vessel or vice versa.

Provided that, in the case of a ship infected with yellow fever calling at a port specified under rule 18, if aedes aegypti have been found on board and the medical examination shows that any infected person has not been isolated in good time, the ship shall not be allowed to depart and shall be subject to the measures, required by the Health Officer in accordance with these Rules.

(2)

In the case of a ship refused permission under sub-rule (1) to communicate with the shore or with any other vessel in the port, the ship shall not during its voyage call at any other port in India. Such a ship shall nevertheless be permitted to take on fuel, water and stores in quarantine and any passengers, who desire to disembark with or without their baggage or to tranship from the ship, may be permitted to do so on the condition that they undertake to submit to the appropriate measures required by the Health Officer under these rules.

(3)

In the event of any ship putting back to sea as a result of permission to communicate with the shore or with any other vessel in the port having been refused under sub-rule (1), the Health Officer shall intimate by telegraph to the next port of call in India for the purpose of taking on fuel, water or stores in quarantine, if he can ascertain it, this fact with the attendant circumstances.

Special provision relating to ships arriving in an area where malaria or other mosquito-borne disease is occurring, etc.

19.

-A.

(1)

Any ship arriving in an area where malaria or other mosquito-borne disease could develop from imported vectors may be disinfected on such arrival, if the ship was not disinfected at a previous port or where the ship was disinfected at a previous port, the Health Officer is not satisfied with such disinsection or if there are live mosquitoes on board.

(2)

The provisions of this rule shall be in addition to, and not in derogation of, the provisions of the other rules.

Special provisions relating to quarantinable diseases

A. Plague

20.

(1)

A ship shall be regarded as infected with plague.

(a)

if it has a case of human plague on board, or

(b)

if a case of human plague has occurred on board more than six days after embarkation, or

(c)

if a plague-infected rodent is found on board.

A ship shall continue to be regarded as infected until the measures prescribed in rule 21 have been effectively carried out at a suitably equipped port.

(2)

A ship shall be regarded as suspected of plague infection

(a)

if it has a case of human plague on board, but such a case has occurred within the first six days after embarkation, or

(b)

if there is evidence of an abnormal mortality among rodents on board of which the cause is not yet known.

The ship shall continue to be regarded as suspected until the Health Officer is satisfied that the abnormal mortality among rodents is not due to plague and until the measures prescribed in rule 22 have, if necessary, been effectively carried out at a suitably equipped port.

(3)

A healthy ship is any ship other than a ship infected or suspected of infection with plague. Even when coming from a plague infected area or having on board a person coming from a plague-infected area a ship shall be regarded as healthy, if on medical examination, the Health Officer is satisfied that the conditions specified in sub-rules (1) and (2) of this rule do not exist.

21.

In the case of a ship infected with plague

(A)

before pratique (which shall be in writing) is given

(1)

the ship and all persons on board shall be medically examined by the Health Officer;

(2)

all infected persons on board shall be disembarked and isolated for such period as the Health Officer may consider necessary; and

(3)

suspects on board may be disinfected and, if necessary, placed under surveillance for a period of not more than six days reckoned from the date of arrival :

Provided that during this period the Health Officer may, in his discretion, prohibit members of the crew from leaving the ship;

(4)

the Health Officer may disinfect and, if necessary, disinsect-

(i)

any baggage of any infected person or suspect, and

(ii)

any other article such as used bedding or linen, and any part of the ship, which is considered to be far contaminated;

(5)

if there is rodent plague on board the ship it shall be deratted, if necessary in quarantine, in the manner prescribed in rule 53 of these Rules subject to the following provisions.

(a)

the deratting shall be carried out as soon as the holds have been emptied.

(b)

one or more preliminary derattings of the ship with the cargo in situ or during its unloading, may be carried out to prevent the escape of infected rodents;

(c)

if the complete destruction of rodents cannot be secured because only part of the cargo is due to be unloaded, the ship shall not be prevented from unloading that part, but the Health Officer may apply any measures, including placing the ship in quarantine, which he considers necessary to prevent the escape of infected rodents.

(B)

Unloading shall be carried out under the control of the Health Officer, who shall take all measures which, in his opinion, are necessary to prevent the infection of the staff engaged on this work. The staff may be subjected to isolation or to surveillance for a period not exceeding six days from the time when they have ceased to work at the unloading of the ship.

22.

In the case of a ship suspected of plague infection, the measures specified in sub-clauses (1), (3), (4) and (5) of Cl. (A)

of rule 21 maybe taken at the discretion of the Health Officer before pratique (which shall be in writing) is given in clause (B) of rule 21 shall also be applicable to such a ship.

23.

A healthy ship shall be given free pratique but, if it has come from a plague area, the Health Officer may

(a)

place under surveillance any suspect who disembarks, for a period of not more than six days, reckoned from the date on which the ship left the infected area; and

(b)

require the destruction of rodents on board the ship in exceptional cases and for well-founded reasons which shall be communicated in writing to the master;

B. Cholera

24.

(1)

A ship shall be regarded as infected with cholera if it has a case of cholera on board, or if a case of cholera has occurred on board during a period of five days before arrival.

(2)

A ship shall be regarded as suspected of cholera infection if a case of cholera has occurred during the voyage, but a fresh case has not occurred during a period of five days before arrival.

(3)

A healthy ship is any ship other than a ship infected or suspected of infection with cholera. Even when coming from a cholera infected area or having on board a person from a cholera infected area, a ship shall be regarded as healthy if, on medical examination, the Health Officer is satisfied that no case of cholera has occurred on board during the voyage.

25.

In the case of a ship infected with cholera.

(A)

before pratique (which shall be in writing) is given

(1)

the ship and all persons on board shall be medically examined by the Health Officer;

(2)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary; and

(3)

any passenger or member of the crew who produces a valid certificate of vaccination against cholera may be placed under surveillance for a period of not more than five days reckoned from the date of disembarkation, and all others, who disembark, may be isolated for a like period :

Provided that during this period the Health Officer may, in his discretion, prohibit members of the crew from leaving the ship;

(4)

the Health Officer may disinfect

(i)

any baggage of any infected person or suspect, and

(ii)

any other article such as used bedding or linen, and any part of the ship, which is considered to be contaminated,

(5)

if, in the opinion of the Health Officer, any water carried on board is contaminated, he shall cause it to be emptied out after it has been disinfected, and to be replaced, after disinfection of the containers, by supply of wholesome drinking water;

(6)

human dejecta, waste water including bilge-water, waste matter and any matter which, in the opinion of the Health Officer, is contaminated shall not be discharged from the ship or unloaded without previous disinfection and shall, after

disinfection, be disposed of in such safe manner as the Health Officer may, in his discretion, prescribe;

(7)

(i)

the Health Officer may prohibit the unloading of, or may remove, any fish, shellfish, fruit or vegetables to be consumed uncooked, or beverages, unless such food and beverages are in sealed containers and he has no reason to believe that they are contaminated :

Provided that, if any such food or beverage forms part of the cargo in a hold of a ship, only the Health Officer for the port at which such food or beverage is to be unloaded may exercise the power to remove it;

(ii)

if any such food or beverage is removed, arrangements shall be made by the Health Officer for its safe disposal.

(B)

Any unloading shall be carried out under the control of the Health Officer, who shall take all measures which, in his opinion, are necessary to prevent the infection of the staff engaged on this work. The staff so engaged may, at the discretion of the Health Officer, be subjected to isolation or to surveillance for a period not exceeding five days from the time when they have ceased to work at the unloading of the ship.

26.

In the case of a ship suspected of cholera infection, the measures specified in sub-clauses (1), (4) (5), (6) and (7) of Cl. (A) of rule 25 may be taken at the discretion of the Health Officer before pratique (which shall be in writing) is given Clause (B) of rule 25 shall be applicable to such a ship.

In addition, any passenger or member of the crew who disembarks may be placed under surveillance for a period of not more than five days reckoned from the date of arrival. The Health Officer may, in his discretion, prohibit the members of the crew from leaving the ship during this period.

27.

A healthy ship shall be given the pratique but, if it has come from a cholera infected area, the measures specified in sub-clauses (1) and (7) of Cl. (A) of rule 25 may be taken at the discretion of the Health Officer.

In addition, the Health Officer may apply the following measures to a person who, within five days of arrival in India, was in a cholera infected area to a person who arrives in a port on the Andaman and Nicobar Islands from a port on the mainland:

(a)

if he is in possession of a valid certificate of vaccination against cholera, he may be placed under surveillance for a period of not more than five days, reckoned from the date of his departure from the infected area or from a port on the mainland; and

(b)

if he is not in possession of such a certificate, he may be placed in isolation for a like period.

C. Yellow Fever

28.

(1)

No ship shall bring to any Indian port other than a port specified by the Central Government under rule 18 any person who has been in a yellow fever infected area within six days of embarkation unless such a person is vaccinated against yellow fever. In addition, no ship which has started from, or touched at, any port in a yellow fever infected area within 30 days of its arrival in India, shall bring to any Indian port other than a port specified by the Central Government under rule 18 any person, even though he may not have been in a yellow fever infected area, unless such a person is vaccinated against yellow fever.

(2)

The proof of vaccination against yellow fever shall consist in the possession of a certificate in the form laid down in Appendix 2 to these Rules.

(3)

If any ship brings to India any person not vaccinated against yellow fever in contravention of sub-rule (1), then, without prejudice to any other proceedings that may be taken against the master of the ship, the Health Officer may, in his discretion, apply the measures prescribed in clause (v) of rule 31.

29.

(1)

A ship shall be regarded as infected with yellow fever if it has a case of yellow fever on board, or if a case has occurred on board during the voyage.

(2)

A ship shall be regarded as suspected of yellow fever infection if it has left a yellow fever infected area less than six days before arrival, or, if arriving after six days but within thirty days of leaving such an area, the Health Officer finds *aedes aegypti* on board.

(3)

A healthy ship is any ship other than a ship infected or suspected of infection with yellow fever.

30.

Apart from the provisions of rule 8, every ship infected with yellow fever or suspected of yellow fever infection and every other ship coming from a yellow fever infected area shall be moored at such a distance, not being less than half a mile, from the shore and from all other vessels as will render improbable the access of mosquitoes from the ship to the shore or to any other vessel or vice versa. The ship shall continue to be moored at such a distance until the Health Officer has granted pratique.

31.

In the case of a ship infected with yellow fever the following measures shall be taken before pratique (which shall be in writing) is given

(i)

the ship shall be disinfested at the earliest opportunity to ensure destruction of *aedes aegypti* in all phases of growth and as far as possible before unloading cargo, if unloading is carried out before the destruction of *aedes aegypti* the personnel employed on this work may, at the discretion of the Health Officer, be subjected to isolation for a period not exceeding six days from the time when they ceased to be exposed to the risk of infection;

(ii)

the ship and all persons on board shall be medically examined by the Health Officer;

(iii)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary;

(iv)

any person in possession of a certificate of vaccination against yellow fever which is not yet valid shall be isolated

(a)

if he does not disembark, on the ship in such manner as may be prescribed by the Health Officer, and

(b)

if he disembarks in such place as may be approved by the Health Officer for this purpose, until the certificate of vaccination becomes valid or until the expiry of nine days reckoned from the time of arrival, whichever is earlier.

(v)

any person who is not in possession of a certificate of vaccination against yellow fever shall be isolated

(a)

if he is not permitted to disembark or being a through passenger does not disembark, on the ship in such manner as may be prescribed by the Health Officer; and

(b)

if he is permitted to disembark, in such place as may be approved by the Health Officer for this purpose for a period not exceeding nine days from the time of arrival.

32.

In the case of a ship suspected of yellow fever infection, the following measures shall be taken before pratique. (which shall be in writing) is given

(i)

the ship may be disinfested as provided in Cl. (i) of rule 31;

(ii)

the ship and all persons on board shall be medically examined by the Health Officer; and

(iii)

the measures prescribed in Cls. (iv) and (v) of rule 31 may be applied at the discretion of the Health Officer.

33.

In the case of healthy ships coming from a yellow fever infected area the following measures may be taken before pratique is given

(i)

the ship and all persons on board may be medically examined by the Health Officers.

(ii)

the ship may be disinfected as provided in Cl (i) of rule 31.

34.

All isolation prescribed by rules 31 and 32 shall be carried out in such manner as to preclude the access of mosquitoes to the persons under isolation.

D. Smallpox

35.

(1)

A ship shall be regarded as infected with smallpox if it has a case of smallpox on board, or if a case of smallpox has occurred on board during the voyage.

(2)

Any other ship shall be regarded as healthy, even though there may be suspects on board, but any suspect on disembarking may be subjected to the measures provided for in Cl. (iii) of rule 36.

36.

(1)

In the case of a ship infected with smallpox, before pratique (which shall be in writing) is given.

(i)

the ship and all persons on board shall be medically examined by the Health Officer.

(iii)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary.

(iii)

other persons who disembark and who in the opinion of the Health Officer are not sufficiently protected by vaccination or by a previous attack of smallpox.

(a)

if they are willing to be vaccinated, or in the case of minors if their guardians or those in charge of them consent to their vaccination, may be subjected to vaccination free of charge, and also to isolation or surveillance for a period not exceeding fourteen days reckoned from the time of the last exposure to infection, and

(b)

if they are not willing to be vaccinated, or in the case of minors if their guardians or those in charge of them do not consent to their vaccination, shall be subjected to isolation or surveillance for the aforesaid period;

(vi)

the Health Officer shall disinfect

(a)

any baggage of any infected person; and

(b)

any other baggage or article such as used bedding or linen, and any part of the ship, which is considered to be contaminated.

(2)

A ship shall continue to be regarded as infected until every infected person has been removed and until the measures required by the Health Officer in accordance with sub-rule (1) of this rule have been effectively carried out.

37.

A healthy ship shall be given free pratique but, if it has come from a smallpox infected area, the measures specified in Cls. (i) and (ii) of sub-rule 36 may be taken by the Health Officer.

38.

(1)

The Health Officer may require any person on an international voyage who does not show sufficient evidence of

protection by a previous attack of smallpox to possess on arrival, a certificate of vaccination against smallpox. Any such person who cannot produce such a certificate maybe vaccinated: if he refuses to be vaccinated, he may be placed under surveillance for not more than fourteen days, reckoned from the date of his departure from the last territory visited before arrival.

(2)

A person on an international voyage, who during a period of fourteen days before his arrival has visited a smallpox infected area or a person arriving from a port on the mainland in a port on the Andaman and Nicobar Island and who, in the opinion of the Health Officer, is not sufficiently protected by vaccination or by a previous attack of smallpox, may be required to be vaccinated, or may be placed under surveillance or may be vaccinated and then placed under surveillance, if he refuses to be vaccinated, he may be isolated. The period of surveillance or isolation shall not be more than fourteen days, reckoned from the date of his departure from the infected area or a port on the mainland.

Explanation. - For the purposes of Cl. (iii) of sub-rule (1) of rule 36 and sub-rule (2) of rule 38, a valid certificate of vaccination against smallpox shall be considered as evidence of sufficient protection.

E. Typhus And Relapsing Fever

39.

In the case of a ship having on board a person who is suffering from or is believed to be infected with typhus or relapsing fever, before pratique (which shall be in writing) is given

(1)

the ship and all persons on board shall be medically examined by the Health Officer;

(2)

all infected persons shall be disembarked and isolated for such period as the Health Officer may consider necessary, and disinfected.

(3)

any suspect may be disinfected; and

(4)

the accommodation occupied by the infected person and by any suspect, together with the clothes they are wearing, their baggage and any other article which, in the opinion of the Health Officer, is likely to spread typhus or relapsing fever may be disinfected and, if necessary, disinfected.

40.

A person on an international voyage, who has left a typhus infected area within the previous fourteen days or a relapsing fever infected area within the previous eight days, may if the Health Officer considers it necessary be disinfected and put under surveillance for a period of not more than fourteen days in the case of typhus and not more than eight days in the case of relapsing fever, reckoned from the date of disinfecting. The clothes which such person is wearing, his baggage and any other article which, in the opinion of the Health Officer, is likely to spread typhus or relapsing fever may be disinfected and, if necessary disinfected.

41.

[Omitted.]

42.

[Omitted.]

43.

[Omitted.]

44.

[Omitted.]

Special Provisions relating to Infectious Diseases

45.

(1)

A ship shall be regarded as infected with an infectious disease-

(i)

if it has a case of any such disease on board, or

(ii)

if, prior to the arrival of the ship in port, a case of any such disease has occurred on board within its period of

incubation.

(2)

A ship shall be regarded as suspected of infection with an infectious disease as aforesaid if, prior to the arrival of the ship in port, a case of such disease has occurred on board but not within its incubation period :

Provided that a ship shall not be regarded as so suspected if (a) the case occurred before the arrival of the ship at a previous port of call, (b) the period between such occurrence and arrival was not less than the period of incubation, and (c) the Health Officer is satisfied that the ship was subjected to medical examination at that port and that all necessary measures have been taken.

(3)

A healthy ship is any ship other than a ship infected or suspected of infection with an infectious disease.

46.

In the case of a ship infected with an infectious disease, before pratique (which shall be in writing) is given.

(1)

the ship and persons on board may be medically examined;

(2)

any infected person, who disembarks, may be isolated for such period as the Health Officer may consider necessary :

Provided that whenever any infected person remains on board, the Health Officer may, in his discretion, limit communication between the ship and the shore or between the ship and any other vessel in the port, or vice versa.

(3)

persons who have been exposed to infection may, if they disembark, be placed under surveillance for a period not exceeding the incubation period of the infectious disease to which they have been exposed, such period being reckoned from the time of the last exposure to infection.

(4)

any parts of the ship and any goods or baggage on board which, in the opinion of the Health Officer, are contaminated may be disinfected.

47.

In the case of a ship suspected of infection with an infectious disease before pratique (which shall be in writing) is given

(1)

the measures specified in sub-rule (1) of rule 46 shall be taken; and

(2)

the measures specified in sub-rules (3) and (4) of rule 46 and not already taken may be taken at the discretion of the Health Officer.

48.

Healthy ships shall be given free pratique.

49.

Except in case of an emergency constituting a grave danger to public health, a ship shall not on account of an infectious disease be prevented by the Health Officer from discharging or loading cargo or stores, or taking on fuel or water.

Part III ? Ships Departing

50.

(1)

All persons proposing to embark upon a ship leaving any Indian port for any port outside India or leaving any port in the Andaman and Nicobar Islands for any port on the mainland or vice versa shall be medically examined by the Health Officer. Through passengers and members of the crew of a through ship shall be liable to medical examination by the Health Officer at his discretion.

(2)

Such medical examination shall ordinarily take place in the day time on shore as shortly as possible before embarkation, at the time and place fixed by the Health Officer. The time and place of this examination shall be arranged to take into account the customs examination and other formalities so as to facilitate embarkation and to avoid delay.

(3)

Any person failing to attend at the time and place fixed by the Health Officer for such medical examination may, in the discretion of the Health Officer, be prohibited from embarking or re-embarking, as the case may be.

(4)

No person shall be permitted by the Health Officer of a port on the mainland to embark on a ship with a view to proceeding by sea to any place in the Andaman and Nicobar Islands unless such person produces valid certificates of vaccination against cholera and small pox :

Provided that the Health Officer may, if acting on the general or special instructions of the Central Government, exempt any particular person from the operation of this sub-rule:

Provided further that the Health Officer shall, before the ship leaves the port, furnish to the medical officer (in any) or master of the ship a certificate giving all relevant details of persons exempted from the first proviso.

(5)

On the completion of the medical examination prescribed in sub-rule (1), the Health Officer shall issue a certificate of medical inspection in the form set out in Appendix 6 to these rules. After the issue of the certificate of medical inspection, no baggage, merchandise or other articles shall be taken on board and no person shall embark or re-embark except with the permission of the Health Officer.

51.

The Health Officer shall prohibit the embarkation or re-embarkation on any ship of

(a)

any person showing symptoms of any quarantinable disease, and

(b)

any person whom the Health Officer considers likely to transmit infection because of his close contact with a person showing symptoms of a quarantinable disease :

Provided that a person on an international voyage who on arrival is placed under surveillance may be allowed to continue his voyage, but the health authority for the next port of call shall be apprised of this fact.

52.

Where there is an epidemic of pulmonary plague in a port, every suspect shall before departure on an international voyage be placed in isolation for a period of six days reckoned from the date of the last exposure to infection.

53.

(1)

The Health Officer shall take all practicable measures to prevent the introduction on board a ship of possible agents of infection or vectors of a quarantinable disease.

(2)

When typhus or relapsing fever exists in a port, person proposing to embark on a ship, whom the Health Officer considers is liable to spread typhus or relapsing fever, shall be disinfected by the Health Officer before such person is permitted to embark. The clothes which such person is wearing, his baggage, and any other article likely to spread typhus or relapsing fever shall be disinfected and, if necessary disinfected before embarkation.

(3)

The Health Officer may, in his discretion, cause to be disinfected and/or disinfected any clothing, bedding or other articles belonging to any person proposing to embark on a ship. In the absence of such disinfection and/or disinfecting, the Health Officer may prohibit the taking on board of any such clothing bedding or other articles.

(4)

If any clothing, bedding or other articles which, in the opinion of the Health Officer, may require disinfection and/or disinfecting, has been placed on board without having undergone such disinfection or disinfecting, the Health Officer may cause their immediate removal from the ship.

(5)

The master of a ship shall not permit the embarkation of any clothing, bedding or other articles belonging to new members of the crew unless embarkation of such clothing, bedding or other articles has been authorised by the Health Officer.

54.

A ship shall not remain in port for a period exceeding twenty-four hours after the completion of the medical examination prescribed in rule 50. A ship so remaining shall not leave the port until a fresh medical examination of all the persons on board has been made by the Health Officer.

Special provisions relating to ships leaving any area where transmission of malaria or other mosquito-borne disease is

occurring, etc.

54.

-A.

Every ship leaving a port situated in an area where transmission of malaria or other mosquito-borne disease is occurring or where insecticides resistant mosquito vectors of disease are present shall be disinfested under the supervision of the Health Officer as near as possible to the time of its departure but in sufficient time to avoid delay in such departure.

55.

No ship shall attempt to leave any port in India for any port outside India unless and until the provisions of rules 50 to 54A have been complied with and the master of a ship has handed over the copy of the certificate of medical inspection granted by the Health Officer to the customs authorities and one copy to the Port Pilot Officer who boards the ship for taking it out of the port. The authority responsible for granting port clearance shall, before granting it, make sure of such compliance.

Special provisions relating to Pilgrim Ships.

56.

No person shall be permitted by the Health Officer to embark on a ship with a view to proceeding by sea to the Hedjaz unless such person produces valid certificates of vaccination against cholera and smallpox.

Part IV ? Special Provisions Relating To Rodent Control, Deratting Certificates And Deratting Exemption Certificates

57.

(1)

Every ship shall be either-

(a)

periodically deratted; or

(b)

permanently kept in such a condition that the number of rodents on board is negligible.

(2)

No ship shall leave any port of India for any port outside India unless the master of such ship is in possession of a Deratting Certificate or a Deratting Exemption Certificate issued by the health authority for a port approved for that purpose under Article 17 of the International Sanitary Regulations. Every such certificate shall be valid for six months, but this period may be extended by one month for a ship proceeding to such a port if the deratting or inspection, as the case may be, would be facilitated by the operations due to take place there :

Provided that the Health Officer may permit a ship to leave an Indian port not approved for the purpose of issuing a Deratting Certificate or Deratting Exemption Certificate, for another port in or outside India, notwithstanding that the master of the ship is not in possession of any such certificate.

Note. - In India, the Health Officer for the ports of-

(i)

Bombay and Calcutta are approved for the purpose of issuing Deratting Certificates, and

(ii)

Bombay, Calcutta, Madras, Cochin, Mormugao, Kandla, Visakhapatnam, Mandapam Camp/Dhanushhkodi and Mandapam Camp/Rameswaram are approved for the purpose of issuing Deratting Exemption Certificates.

(3)

Deratting Certificates and Deratting Exemption Certificates shall conform to the model specified in Appendix I to these Rules.

(4)

If a valid certificate is not produced, the Health Officer for a port approved under Art. 17 of the International Sanitary Regulations, after enquiry and inspection, may proceed in the following manner

(a)

If the port is approved for the purpose of issuing Deratting Certificate, the Health Officer may derat the ship or cause the deratting to be done under his direction and control. He shall decide in each case the technique which should be employed to secure the extermination of rodents on the ship. Deratting shall be carried out so as to avoid as far as possible damage to the ship and to any cargo and shall not take longer than is absolutely necessary. Wherever

possible deratting shall be done when the holds are empty. When deratting has been satisfactorily completed, the Health Officer shall issue a Deratting Certificate.

(b)

At any port approved for issuing Deratting Exemption Certificates only the Health Officer may issue such a certificate if he is satisfied that the number of rodents on board is negligible. Such a certificate shall be issued only if the inspection of the ship has been carried out when the holds are empty or when they contain only ballast or other material unattractive to rodents, of such a nature or so disposed as to make a thorough inspection of the holds possible. A Deratting Exemption Certificate may be issued for an oil-tanker with full holds.

(5)

If the conditions under which deratting is carried out are such that, in the opinion of the Health Officer for the port where the operation was performed, a satisfactory result cannot be obtained he shall make a note to that effect on the existing Deratting Certificate.

(6)

The fees chargeable for Deratting Certificates and Deratting Exemption Certificates at Indian ports shall be as fixed from time to time by the Central Government.

58.

The master of every ship shall, during the stay of the ship in a port take such precautions as the Health Officer for the port may specify in order to prevent rodents gaining access to the ship.

59.

The Health Officer shall

(a)

take all practicable measures to keep rodents in the port installations to a negligible number;

(b)

make every effort to extend rat-proofing to the port installations.

Part V ? Special Provisions Relating To The Carriage Of Dead Bodies And Cremated Remains

60.

No person shall bring into India any dead body or human remains of persons who may have died of yellow fever, plague, anthrax, glanders or such other diseases as may be notified by the Central Government for this purpose :

Provided that nothing in this rule shall apply to properly cremated ashes of dead bodies or human remains.

61.

The dead body or human remains of a person who may have died of a disease other than those specified in rule 60 may be brought into India subject to the provisions of rules 62 to 66.

62.

The consignee as well as the shipping agents shall give to the Health Officer of the port of arrival advance intimation, of at least 48 hours, of the importation of the dead body or human remains or ashes of cremated bodies.

63.

Applications to bring dead bodies or human remains or ashes of cremated bodies to India shall be made to the Indian Diplomatic representatives in countries where such representatives are functioning or, where there is no such representative, to the Health Officer of the port at which the dead body is to be landed.

64.

(1)

If the dead body or human remains have been properly cremated, the cremated ashes shall be placed in an urn or casket having in outer packing of suitable material.

(2)

In the case of uncremated remains, the following procedure shall be adopted-

(a)

A corpse which has not been buried should be enclosed in a shell of zinc or other equally suitable metal with all joints so soldered as to seal them hermetically and prevent the escape of noxious gases or fluids. The shell should be enclosed in a stoutly built teak or other hard wood coffin and the coffin should be enclosed in a zinc or tin-lined wooden packing case filled with saw-dust impregnated with carbolic powder.

(b)

Where a coffin has been exhumed and proves on examination to be intact, sound and free from offensive odour, it should be enclosed in an hermetically sealed zinc or tin-lined wooden packing case filled with saw-dust impregnated with carbolic powder.

(c)

Where a coffin has been exhumed and is not intact, sound and free from odour, its contents should be dealt with in accordance with the requirements of Cl. (a) above.

65.

A certificate issued by a responsible municipal or governmental authority of the country from where the package containing the dead body, or human remains or ashes of cremated bodies as the case may be is imported and endorsed by the Indian Diplomatic Representative, if any, in that country shall accompany the package. The certificate shall give the full name of the deceased, his age at time of death and the place, date and cause of death and shall indicate that the package conforms to and has been sealed in accordance with the specifications prescribed in rule 64.

66.

The package containing the dead body or human remains or ashes of cremated bodies shall not be open during its transit and shall be in a sound sealed condition at the time of arrival. It shall not be removed from the precincts of the port until the Health Officer has permitted in writing its removal. After the Health Officer has accorded his permission, the consignee shall remove and dispose of the package in accordance with the general or special instructions which may be issued by the local authorities, Government and/or municipal, in this behalf.

67.

For the transmission of a dead body or human remains and ashes of cremated bodies from India to any place outside India, the prior written permission of the competent authority of the country of destination as also of the District Magistrate or the Deputy Commissioner or the Chief Presidency Magistrate or the Coroner within whose jurisdiction the death took place shall be obtained. The requirements laid down by the country of destination with regard to the import of dead bodies, human remains or ashes of cremated bodies into its territory shall be complied with by the consignor. In case, no such conditions have been prescribed, the provisions of rule 64 shall be complied with and the package shall bear an inscription to the effect that it contains infected material and should be handled with care.

68.

Subject to the provisions of rule 60 a package containing a dead body or human remains or ashes of cremated remains, which is in transit through India, shall not be subjected to any restrictions if it has been packed and sealed in the manner prescribed in rule 64 or in a manner which, in the opinion of the Health Officer, is considered to be equally satisfactory.

Part VI ? Special Provisions Applicable In The Event Of Death On Board

69.

If death occurs on board before a ship enters port limits, the dead body shall, unless there are special reasons to the contrary, be buried at sea before the ship enters port limits, in not less than five fathoms of water, in such manner as to secure its immediate sinking and remaining below the surface :

Provided that, in the case of a ship proceeding to Calcutta, if death occurs after passing Saugor, and

(i)

if the ship is not likely to reach Calcutta the same day, the dead body shall be disposed of at Diamond Harbour with the permission of local Magistrate; or

(ii)

if the ship is likely to reach Calcutta the same day, the dead body shall be brought to the port and then dealt with in accordance with the provisions of rule 70.

70.

If death occurs on board within port limits, or if a ship arrives with a dead body on board

(i)

the master of the ship shall at once inform the Health Officer of the fact;

(ii)

the ship's surgeon, or if there is no ship's surgeon the Health Officer, shall if possible ascertain and certify the cause of death;

(iii)

if for any reason the ship's surgeon or, as the case may be, the Health Officer is unable to certify the cause of death the Health Officer shall report the matter to the police with a view to the removal of the dead body from the ship and its postmortem examination;

(iv)

the master of the ship shall, in all cases where postmortem examination is necessary or where the dead body is unclaimed, hand over the dead body to the police and, in all other cases, to the person claiming the dead body; and

(v)

the master of the ship shall carry out such instructions for the disposal of the dead body and for the cleaning and disinfection of the ship as may be given by the Health Officer.

71.

If death occurs on board either by accident or in suspicious circumstances, the master of the ship shall report the matter to the police at the earliest possible opportunity.

72.

(1)

If death occurs during the day on board a ship within port limits, the ensign and house flag, if any, shall immediately be lowered to half-mast and keep in that position from sunrise till sunset as long as the dead body remains on board; and if death occurs between sunset and sunrise, one red light shall be hoisted at the peak, half-mast high.

(2)

Every ship arriving at a port with a dead body on board shall, if the arrival is by day, hoist the appropriate International Code Signal in accordance with Code Book, Volume I, and, if the arrival is by night, transmit a message to the Signal Station, intimating the fact of a dead body being on board.

Part VII ? General Rules

73.

The sanitary measures permitted by these Rules are the maximum measures applicable to international traffic.

74.

Sanitary measures and health formalities shall be initiated forthwith, completed without delay, and applied without discrimination.

75.

(1)

Disinfection, disinsecting, deratting and other sanitary operations shall be so carried out as

(a)

not to cause undue discomfort to any person, or injury to his health;

(b)

not to produce any deleterious effect on the structure of a ship, or on its operating equipment; and

(c)

to avoid all risk of fire.

(2)

In carrying out such operations on foods, baggage and other articles, every precaution shall be taken to avoid any damage.

76.

(1)

The Health Officer shall, when so requested, issue free of charge to the master, or any representative of the owner or agent, of a vessel a certificate specifying the measures applied to the vessel, the parts thereof treated, the methods employed and reasons why measures have been applied.

(2)

The Health Officer shall, when so requested, issue free of charge

(a)

to any traveller a certificate specifying the date of his arrival or departure and the measures applied to him and his baggage;

(b)

to the consignor, the consignee, and the carrier, or their respective agents, a certificate specifying the measures applied

to any goods.

77.

The Health Officer shall take all practicable measures to control the discharge from any vessel of sewage and which might contaminate the waters of the port.

78.

No sanitary measures, other than medical examination, shall be applied to passengers and crew on board a healthy ship from which they do not disembark.

78.

-A.

The master of any vessel shall immediately give notice to the Port Health Officer about the occurrence on board the vessel of a case or suspected case of quarantinable or infectious disease. The Health Officer, on receipt of information about the occurrence of a quarantinable or infectious disease on board a vessel in the port shall immediately proceed there, medically examine all persons on board, arrange for the isolation of the case or the suspected case on board or in a hospital in co-operation with the local health authorities and take other appropriate measures prescribed under special provisions relating to quarantinable or infectious disease or both.

79.

The master of any vessel subject to these Rules and every other person shall comply with all directions lawfully given and all conditions lawfully imposed by the Health Officer in pursuance of these Rules and shall give that Officer all reasonable facilities for the discharge of any duty imposed on him by these Rules.

80.

The Health Officer may in his discretion

(i)

refuse entry into the limits of the port to any person or remove from the limits of the port any person who in his opinion, is likely to spread any quarantinable or infectious disease; and

(ii)

prohibit the admission of any visitor to any vessel in port.

81.

The Health Officer shall take effectual measures to ensure

(1)

that drinking water and foodstuffs taken on board a ship are wholesome and that water taken in as ballast is disinfected, if necessary; and

(2)

that old clothes and rags, whether baled or otherwise, have been thoroughly disinfected before loading if, in his opinion, they are likely to be infected with small pox.

82.

The Health Officer shall take effectual measures for keeping the port area free from mosquitoes in their larval and adult stages.

83.

(1)

The Health Officer, in order to ascertain its general sanitary condition, may at any time inspect any ship or vessel within the precincts of the port. Such inspection may have regard to the prevalence on the ship or vessel of mosquitoes, insects or other vermin. The Health Officer may recommend such measures as he thinks fit to the master, owner or agent for the rectification of any particular insanitary state, for the destruction of mosquitoes, insects or other vermin and for the elimination of their breeding places on board. The Health Officer may further require such measures to be adopted and if they are not adopted may carry them out or cause them to be carried out at the expense of the master, owner, or agent.

(2)

The powers conferred on the Health Officer by sub-rule (1) may also be exercised by the Conservator of the Port or any Officer duly authorised by him in writing or appointed in this behalf by the Central Government.

84.

(1)

The Health Officer may disinfect or in special cases, for reasons to be recorded in writing, remove foodstuffs or beverage on board a ship if he has reason to believe that they may have become contaminated by the infection of a quarantinable disease or may serve as a vehicle for the spread of any such disease. If any such foodstuffs or beverage is removed from the ship, the Health Officer shall make arrangements for its safe disposal.

(2)

Apart from the special provisions relating to cholera in Part II of these Rules goods, other than live animals, in transit without transshipment shall not, however, be subjected to any sanitary measures or detained.

85.

Except in the case of an infected person or suspect, baggage may be disinfected or disinsected only in the case of a person carrying infective material or insect vectors of a quarantinable disease.

86.

(1)

Mail, newspapers, books and other printed matter shall not be subjected to any sanitary measures.

(2)

Postal parcels may be disinfected and, if necessary disinsected if they contain-

(a)

any of the foods referred to in sub-clause (7) of clause (A) of rule 25 of these Rules which the Health Officer has reason to believe comes from a cholera infected area; or

(b)

linen, wearing apparel, or bedding, which has been used or soiled and to which the provisions of Part II or III of these Rules are applicable.

87.

(1)

A certificate of clearance for the purpose of customs duty shall not be granted in respect of consignments of imported second-hand clothing unless covered by a certificate of approval from the Health Officer. The Health Officer may inspect all such consignments and prohibit removal of any consignment unless the consignee produces a certificate of disinfection, in respect of such clothing, of the Government or Municipal health authority for the port of despatch or for the port of arrival in India.

(2)

When no such certificate of disinfection is produced, the Health Officer may direct the disinfection of such clothing and the fees chargeable for such disinfection shall be such as the Central Government may, from time to time, fix.

(3)

The cost of carriage of such consignments from the docks to the disinfecting station shall also be borne by the consignor.

88.

No sanitary document, other than those provided for in these Rules, shall be required by the Health Officer.

89.

(1)

No charge shall be made by the Health Officer of a port for

(a)

any medical examination provided for in these Rules or any supplementary examination, bacteriological or otherwise which may be required to ascertain the state of health of the person examined; and

(b)

any vaccination of a person on arrival and any certificate thereof.

(2)

Charges for applying the measures provided for in these Rules, other than the measures referred to in sub-rule (1) of this rule, shall conform with the traffic for such charges as may be fixed from time to time by the Central Government. These charges shall be moderate and not exceed the actual cost of the service rendered, and they shall be levied without distinction as to the nationality, domicile or residence of the person concerned or as to the nationality, flag, registry or ownership of the ship. In particular there shall be no distinction made between national and foreign persons and ships.

(3)

The tariff, and any amendment thereto, shall be published in the Official Gazette at least ten days in advance of the levy thereunder.

(4)

If any person or member of the crew refuses or fails to pay any charges due from him, then, without prejudice to any proceedings that may be taken against him, such charges shall be recoverable from the owner or agent of the ship on which such person or member of the crew arrives.

90.

A vaccination document issued by the Armed Forces shall be accepted in lieu of a vaccination certificate in the form shown in Appendix 2, 3 or 4 to these Rules if-

(a)

it embodies medical information substantially the same as that required by such form; and

(b)

it contains a statement in English or in French recording the nature and date of the vaccination and to the effect that it is issued in accordance with Art. 99 of the International Sanitary Regulations.

Part VIII ? Special Rules In Relation To The Andaman And Nicobar Islands

91.

Notwithstanding anything contained in these Rules

(a)

Every person, on arrival at a port in the Andaman and Nicobar Islands, shall be required to produce valid certificate of vaccination against cholera and small-pox.

(b)

Any person who cannot produce such certificates may be isolated in such place as may be approved by the Health Officer for this purpose or placed under surveillance for such period, as the Health Officer may consider necessary.

92.

All cattle, on arrival at a port in the Andaman and Nicobar Islands, shall forthwith be sent to a segregation camp established for this purpose and shall be detained therein for a period of ten days during which it may be inoculated in such manner as the officer-in-charge of the camp may deem necessary so as to render it free from infectious or contagious disorders.

Part IX ? Penalties

93.

Whoever contravenes any provision of these Rules or disobeys, or fails to comply with, any order given in pursuance of these Rules, shall be punishable for every such offence with fine which may extend to one thousand rupees.

94.

If the master of a vessel fails wholly or in part to do any act prescribed by any rule, the Health Officer shall cause such act to be done, and the reasonable expenses incurred in doing such act shall be recoverable by him from such master.

Appendix I

(See rule 53)

Deratting Certificate (a)

Deratting Exemption Certificate (a)

issued in accordance with Article 52 of the International Sanitary Regulations.

(Not to be taken away by Port Authorities)

Port of

Date

This certificate records the inspection and (deratting)/(exemption) (a) at this port and on the above date.

of

the

ship

inland

navigation vessel

At

the time of (inspection)/(deratting)

(a)

of

tonnage

for a sea-going vessel nottonnage for an

inland navigation vessel

(a)

the holds were laden withtons of

.....cargo

Compartments

(b)

Rat

indications

(c)

Rat

Harbourage

Deratting

discovered

(d)

treated

By

Fumigation Fumigant.....

Hours

exposure

By

catching, trapping, or poisoning

Space

(cb. ft.)

Quantity

used

(e)

Rats

found dead

Traps

set or poisons put out

Rats

caught or killed

Holds

1.

?.....2

?.....3

?.....4

?.....5

Compartments

(b)

Rat

indications (c)

Rat

Harbourage

Deratting

discovered

(d)
treated
By
Fumigation Fumigant.....
Hours
exposure
By
catching, trapping, or poisoning
Space
(cb. ft.)
Quantity
used

(e)
Rats
found dead
Traps
set or poisons put out
Rats
caught or killed
.....6
.....7

Shelter
deck space.
Bunker
space.
Engine
room and shaft alley.
Forepeak
and store-room.
Afterpeak
and store-room Lifeboats.
Charts
and wireless rooms.
Galley.
Pantry.
Provision
store-rooms.
Quarter
(crew).
Quarters
(officers).
Quarters
(cabin passengers).
Quarters
(storage).
Total

(a)
Strike out the unnecessary indication.

(b)
In case any of the compartments enumerated do not exist on the
ship or inland navigation vessel, this fact must be mentioned.

(c)

Old or recent evidence of excerta runs, or gnawing.

(d)

None, small, moderate, or large.

(e)

State the weight of sulphur or of cyanide salts or quantity of HCN acid used.

(f)

Specify whether applies to metric displacement or any other method of determining the tonnage.

RECOMMENDATIONS

MADE.-Observation.-In the case of exemption, state here the measures taken for maintaining the ship or inland navigation /vessel in such a condition that the number of rats on board is negligible.

Scale,

name, qualification, and signature of the inspector.

Appendix 2

(See rule 2 (20) 28 (2), 31)

International Certificate of Vaccination or Revaccination Against Yellow Fever Certificate International De vaccination Ou De Revaccination Contre La Fievre Jaune

This is to certify that ()date of birth () Sex ()Je soussigne (e) certifie que ()ne(e) le(c)sexe() Whose signature follows() dont la signature suit.has on the indicated been vaccinated or revaccinated against yellow fever. a etc. vaccine (e) contre as fievre jaune la date indiquee.

Date

Signature

and professional status

Origin

and batch No. of vaccine

Official

stamp of vaccinating centre

Signature

et qualite professionelle du vaccinateur

Origine

de vaccin employe du lot

Cachet

Official due contre de vaccination

1

1

2

2

3

3

4

4

This certificate is valid only if the vaccine used has been approved by the World Health Organisation and if the vaccinating centre has been designated by the health administration for the territory in which that centre is situated.

The validity of this certificate shall extend for a period of ten years, beginning ten days after the date of vaccination or, in the event of a revaccination within such period of ten years, from the date of that revaccination.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

Ce certificat nest valable que si le vaccin employe a ete approuve par 1' Organisation mondiale de 'la Sante et si le contre de vaccination a ete habilite part 1' administration sanitaire du erritorie dans lequel co contre est situa.

La validite de ce certificat couvre une periode de dix ans commençant dix jours apres la date de' la vaccination ou, dans le cas dune revaccination au cours de cette periodice de dix ans, le jour de cette revaccination.

Toute correction ou rature sur le certificat ou 1' omission dune quelconque des mentions qu'il comporte peut affecter sa validite.

Appendix 3

(See rules 2 (20) 25, 27)

International Certificate of Vaccination or Revaccination against Cholera Certificate International De Vaccination Ou De Revaccination Contre Le Cholera

This is to certify that Je soussigne (e)date of birthsex.....Certifie que ne (e) lesexe.....whose signature follows dont la signature suit has on the date indicated been vaccinated or revaccinated against cholera a ete vaccine (e) ou revaccine (e) contre la cholera la date indique.

Date

Signature

and professional status of vaccinator

Approved

stamps Cachetd authentication

Signaturet

qualite professionnelle du vaccinateur

1.

1

2

2

3

3

4

4

The validity of this certificate shall extend for a period of six months, beginning six days after the first injection of the vaccine or in the event of a revaccination within such period of six months, on the date of that revaccination.

The approved stamp mentioned above shall be in a form prescribed by the health administration of the territory in which the vaccination is performed.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

La validite de ce certificat couvre une periode de dix mois commencement six jours apres la premiere injection du vaccin ou, dans le cas dune revaccination au cours de cette periodie de six mois, le jour de cette revaccination.

Le cachet d'authentication doit etre conforme au modele prescrit par 1'a administration santaire duterritoire ou la vaccination est effectuee.

Toute correction ou rature sur le certificat ou 1'omission dune quelconque des mentions qu'il comporte affecter sa validite.

Appendix 4

(See rules 2 (20) 36, 38 and explanation thereunder)

International Certificate of Vaccination or Revaccination against Small pox Certificat International De Vaccination Ou De Revaccination Contre La Variole

This is to certify thatdate of birth.....sex..... Je soussigne (e) certifie que ne (e) lesexe.....whose signature follows dont la signature suit has on the date indicated been vaccinated or revaccinated against smallpox with a freez-dried or liquid vaccine certified to fulfil the recommended requirements of the World Health Organisation a ete vaccine (e) contre la variole a la date indiquee, ci-dessous avec un vaccine lyophilise ou liquide certifie conforme aux normes recommandees per organisation modiale de la Sante.

Date

sho

by "x" whether Indiquer par "x" s'il agit de

:

Signature

and professional status of vaccinator

Origin

and batch No. of vaccine

Approved

stamp Cachet d' authentication

Signature

ettitre du vaccinatour

Origin

due vacci net numero du lot

(a)

Primary

a

b

1

vaccination

1

1

performed

primo

vaccination

effectuee

(b)

Read as

1.

successful

Prise

Unsuccessful

Pas de prise

2.

Revaccination

2

3

3.

Revaccination

The validity of this certificate shall extend for a period of three years, beginning eight days after the date of successful primary vaccination or, in the event of a revaccination on the date of that revaccination.

The approved stamp mentioned above shall be in a form prescribed by the health administration of the territory in which the vaccination is performed.

Any amendment of this certificate, or erasure, or failure to complete any part of it, may render it invalid.

La validite de ce certificat couvre une periode de trios ans commenct huit jours apres la date de la primovaccination effectuee avec succes (prise) ou, dans le cas dune revaccination, le jour de cette revaccination.

Le cachet d'authentification doit etre conforme au modele prescrit par l'administration sanitaie du territoire ou la vaccination est effectuee.

Toute correction ou rature sur le certificat ou l'omission d'une quelconque des mentions qu'il comporte peut affecter sa validite.

Appendix 5

(See rule 5 (3))

Maritime Declaration of Health

(To be rendered by the masters of ships arriving from ports outside the territory)

Port
of
.....Dated.....
Name
of
ship.....From.....to.....
Nationality
.....Master's
name.....
Net
Registered Tonnage
.....
Deratting
or
Certificate
.....Dated.....
Deratting
Exemption
Issued
at
No.
of passengers
Cabin
.....Number of crew.....
Deck
.....
List
of ports of call from commencement of voyage with dates of
departure.
Health
Questions
Answer
Yes
or No
1.
Has there been on board during the voyage any case or suspected
case of plague, cholera, yellow fever, small pox, typhus, or
relapsing fever? Give particulars in the Schedule.
2.
Has plague occurred or been suspected among the rats or mice on
board during the voyage, or has there been an abnormal mortality
among them?
3.
Has any person died on board during the voyage other wise than
as a result of accident? Give particulars in Schedule.
4.
Is there on board or has there been during the voyage any case
of disease which you suspect to be of an infectious nature? Give
particulars in Schedule.
5.
In there any sick person on board now? Give particulars in

Schedule.

Note. - In the absence of a surgeon, the Master should regard the following symptoms as ground for suspecting the existing of disease of an infectious nature: fever accompanied by prostration or persisting for several days, or attended with glandular swelling; or any acute skin rash or eruption with or without fever; severe diarrhoea with symptom of collapse; jaundice accompanied by fever.

6. Are you aware of any other condition on board which may lead to infection or the spread of disease?

I hereby declare that the particulars and answers to the questions given in this Declaration of Health (including the Schedule) are true and correct to the best of my knowledge and belief.

Signed

Master

Countersigned

Ship's Surgeon

Date

To The Declaration

Appendix 5 (contd.)

Particulars of every case of illness or death occurring on board

Name

Class

or rating

Age

Sex

Nationality

Port

of embarkation

Date

of embarkation

Nature

of illness

Date

of its onset

Result

of illness

Disposal

of case

Appendix 6

[See rule 50 (5)]

Government Of India

Certificate of Medical Inspection

Certified that the ship/ steamersailing under.....flag under the command of Captainbound for.....with.....crew andpassengers on board has been inspected today the of..... 195..... at.....hours. Dated195 Health Officer of the Port.

Note. - 1. This certificate is valid for 24 hours only vide rule 54 of the Indian Port Health Rules, 1955.

Note 2. - One copy of this certificate shall be forwarded by the master of the ship to the customs authorities issuing the port clearance and one copy to port Pilot Officer who boards the ship for taking it out of the port.

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